

**SYNTHETIC MUNICIPAL ENACTMENT — FICTIONAL CITY — NOT
AN ACTUAL ORDINANCE**

City of Norvale Ordinance No. N-2025-18

Paid-Speaker Permit Ordinance, Application, and Fee Schedule

Adopted August 18, 2025; effective October 1, 2025

Application form and fee schedule issued November 3, 2025

Be it ordained by the City Council of Norvale that the municipal code is amended to establish coordination requirements for paid speaking programs at recurring public events. The Council finds that these events contribute to civic life. A scheduled address can concentrate an audience differently from ordinary movement among vendor tables, and advance notice may assist pedestrian routes, vehicle circulation, emergency access, sanitation, and allocation of municipal personnel.

This ordinance is intended to regulate event logistics without favoring or disfavoring any idea. No official may consider agreement or disagreement with a speaker, an organizer, a publication, or a proposed viewpoint. A literary reading, political discussion, religious address, commercial presentation, educational lecture, or criticism of City policy is subject to the same operational criteria when the objective terms of this ordinance apply.

The Council also finds that applicants benefit from a written decision identifying any documented risk and the reason for any condition or denial. Administration shall be based on the application, the physical characteristics of the site, reliable information concerning comparable events, conflicting reservations, and written estimates supplied by responsible departments. Speculation about public reaction to a lawful message is not a permissible risk.

Section 1. Definitions

“City property” means a park, plaza, pedestrian mall, street segment, or other place owned or controlled by the City and made available for temporary organized public use. “Organizer” means the person or entity responsible for scheduling, site control, and compliance at an event. “Recurring public event” means a fair, market, exhibition, festival, or substantially similar organized gathering proposed for two or more dates within a twelve-month period under common sponsorship or management.

“Paid speaker” means a person who receives money, an honorarium, travel reimbursement beyond documented actual expense, or another thing of material value from an organizer or participating vendor in exchange for a scheduled address, reading, lecture, moderated discussion, demonstration accompanied by an address, or audience question session. Compensation from an unrelated source does not by itself make a person a paid speaker. A person is not a paid speaker merely because that person owns a business, sells goods, signs merchandise, or answers incidental customer questions.

“Topic” means a brief, viewpoint-neutral description of the announced subject or format sufficient to identify the scheduled activity. “Documented risk” means a crowd, traffic, or municipal-resource concern supported by facts stated in the application, physical site limits, a conflicting approved use, records of the same or a materially comparable event, a departmental staffing estimate, a traffic-control assessment, or another identified source capable of review. “Condition” means an operational requirement reasonably directed to a documented risk.

Section 2. Coverage and Exemptions

An organizer proposing a recurring public event on City property shall obtain a paid-speaker permit for each event date if the program includes one or more paid speakers. Each date is reviewed separately because available sites, construction, transit operations, seasonal demand, and public resources may differ. Related applications may be submitted together for administrative convenience, but approval of one date does not compel approval of another when documented circumstances differ.

This ordinance does not apply to an ordinary vendor who displays or sells books, art, food, crafts, or other lawful goods without delivering a scheduled address. It does not apply to incidental conversation at a sales table, an unscheduled autograph interaction, a private meeting not open to the public, or a person who speaks without compensation. It does not excuse an event from any generally applicable reservation, insurance, capacity, fire, sanitation, accessibility, noise, or traffic requirement.

The permitting director shall not classify an activity by asking whether its message is popular, controversial, religious, political, artistic, or commercial. A disputed classification turns on the objective arrangement: whether a time and speaking location are announced, an audience is invited to gather, and compensation is exchanged for the presentation. An author's subject or an advocate's position shall play no role. This section does not regulate spontaneous individual speech that does not reserve or control City property.

Section 3. Application and Forty-Five-Day Filing Requirement

For each covered event, the organizer shall file a complete application no fewer than forty-five calendar days before the proposed opening time. The application shall identify the organizer and responsible on-site contact; the requested date and hours; the expected total attendance; the number and placement of vendor tents, tables, stages, chairs, or queues; proposed loading activity; emergency-access lanes; traffic measures; and any request for City personnel or equipment.

The application shall list the name of every paid speaker, a brief topic description, and the proposed starting time and duration of each presentation. The description need not contain a script, abstract, quotation, political affiliation, or position on an issue. Officials shall not demand those materials as a condition of completeness. The schedule may identify a format, such as “poetry reading,” “historical novel discussion,” or “cooking demonstration and questions,” when that description reasonably conveys the activity's operational character.

An application is complete when it supplies the information required by this section, a legible site plan, proof of any generally applicable insurance, and the fees specified below. Within five business days of receipt, the permitting office shall notify the organizer in writing of an identified omission. A notice of omission shall describe the missing item and shall not request expressive detail beyond the brief topic description. An incomplete submission does not reserve a site against a complete application previously or subsequently approved under neutral reservation rules.

Section 4. Scheduled Fees

A complete paid-speaker permit application shall include a base fee of two hundred forty dollars for each proposed event date and an additional fee of forty-five dollars for each paid speaker listed for that date. The same person appearing twice during one event is counted once unless the presentations require materially separate locations or operational review. A substitute paid speaker is not charged twice when the original speaker withdraws and the approved operational plan remains substantially unchanged.

The base fee supports intake, completeness review, site coordination, interdepartmental circulation when needed, and preparation of a written decision. The additional amount supports review of presentation timing, expected audience movement, and transitions between speaking and vendor areas. Revenue collected under this ordinance shall be credited to event-permitting administration and shall not be allocated according to a speaker's subject, identity, or viewpoint.

These fees do not include charges independently authorized for equipment, extraordinary sanitation, barricades, or requested personnel. A separate charge must identify its legal basis and may not duplicate another fee. The office shall publish the schedule and payment methods, and an organizer may seek correction of an arithmetic error before decision. An administrator may not vary the fixed schedule because an event is expected to attract support, protest, press attention, or disagreement. Any generally available indigency or nonprofit accommodation remains governed by neutral terms.

Section 5. Operational Review

The permitting director shall review a complete application for documented risks involving crowd movement, vehicle circulation, police staffing, fire or medical coverage, sanitation, site capacity, conflicting approved uses, and other municipal resources directly affected by the event. Review may include consultation with transportation, parks, fire, emergency medical, sanitation, and police personnel. Each consulted department shall identify the facts and assumptions supporting a requested measure. A bare prediction that a topic may provoke listeners is not a documented risk.

Relevant information may include site dimensions and entrances; transit stops and travel lanes; announced attendance; tent and seating placement; presentation times; loading windows; seasonal demands; and verified experience at a comparable event. Prior peaceful operation is relevant but does not establish conditions for a different date. A prior inconvenience does not justify denial when a reasonable site adjustment addresses it.

The director shall evaluate whether an identified concern can be addressed through a condition less burdensome than denial. Examples include maintaining an emergency lane, moving a presentation area, staggering loading, limiting structures to site capacity, placing temporary signs, or coordinating a specified traffic post. Conditions shall address conduct and logistics, not the substance of speech. The organizer may voluntarily propose revisions during review. Staff shall place material departmental recommendations and the organizer's accepted revisions in the permit file so that the basis of the decision can be understood.

Section 6. Decision, Conditions, and Denial

The permitting director may approve an application, approve it with conditions, or deny it. Approval shall identify the authorized site, date, hours, approved operational plan, and any generally applicable requirements. A condition may be imposed only when the written decision identifies a documented crowd, traffic, or municipal-resource risk and explains how the condition addresses that risk. The scope and cost of a condition shall bear a reasonable relationship to the facts stated in the decision.

Denial is authorized when conditions cannot reasonably address a documented risk, the site or time was assigned under neutral reservation rules, the event exceeds lawful capacity, required information remains missing after notice, or the organizer declines a lawful necessary condition. Denial may not rest on hostility to a lawful message, an official's view of merit, criticism of government, or an unsupported prediction of disorder.

Every conditional approval or denial shall be written. It shall identify the supporting evidence, note material disputed information when practicable, state each condition, and identify the responsible office. If a known alternative site or time would materially address the problem, the decision shall identify it. Approval does not endorse the event or its speakers. A clerical error may be corrected, but a substantive new ground requires notice and an opportunity to respond.

Section 7. Changes After Submission

An organizer shall notify the permitting office promptly of a material change in attendance, layout, loading, hours, or the paid-speaker schedule. A request to add or substitute a paid speaker shall provide the person's name, brief topic, and proposed time and shall include any additional forty-five-dollar fee not offset by a withdrawal. The director shall assess whether the change can be reviewed before the event without impairing completed staffing, traffic, site, or conflict determinations.

Nothing in this section guarantees acceptance of a change submitted after the forty-five-day deadline. The director may approve a late change when the existing operational plan remains adequate or can be adjusted with available resources. The director may condition or decline the change when identified facts show that adequate review or a necessary operational adjustment cannot be completed. The response shall be written and shall state the reason. An administrator may not reject a change because of disagreement with the replacement speaker or topic.

Cancellation of a speaker does not invalidate an approved event. If all paid presentations are removed before review ends, the organizer may ask to proceed under otherwise applicable rules. Refunds depend on the published schedule and completed work. Organizers remain responsible for unreported changes affecting capacity, emergency access, or traffic, and for timely, accurate information about their controlled programs.

Section 8. Application Form, Administration, and Construction

City Form PS-1, issued November 3, 2025, requires organizer names, contacts, event date and hours, site, expected attendance, site plan, loading window, emergency contact, and traffic measures. Its schedule lists each paid speaker's name, brief topic, starting time, duration, and compensation category. The worksheet begins with \$240, adds \$45 per listed paid speaker, separately identifies other authorized charges, and requires initials on the arithmetic. Bold instructions say no script, ideological position, political affiliation, or viewpoint is requested.

The permitting office shall maintain each application, completeness notice, material departmental recommendation, applicant response, and final written decision according to municipal retention rules. Personnel assigned to decide applications shall receive instruction on the definitions of paid speaker, topic, documented risk, and condition. Aggregate fee receipts and disposition categories shall be available through ordinary public-record procedures.

This ordinance shall be construed consistently with the United States Constitution and other controlling law. It does not authorize prior review of a proposed script, compelled disclosure of an ideological position, or suppression of lawful speech based on listener reaction. It also does not limit the City's authority to respond to an emergency arising during an event, enforce generally applicable laws, or protect access for persons with disabilities. Where a narrower lawful construction is available, administrators shall apply that construction.

If a provision or application is held invalid, the remainder shall remain effective where possible, provided that the Council would not retain a fee or disclosure requirement without its written-reason and viewpoint-neutrality protections. The City Manager may issue consistent forms and instructions but may not enlarge the grounds for a condition or denial. Material amendments require Council action through ordinary public process.

Adoption and Effective Date

This ordinance was introduced at a public meeting, made available for inspection, and considered after receipt of staff materials and public comment. The Council acknowledges testimony that advance schedules help departments coordinate recurring uses and testimony that small literary organizers often confirm authors late. It adopts the fixed timetable and fee schedule as a uniform administrative rule while directing staff to administer change requests without regard to viewpoint and to document the operational basis for any restriction.

The provisions shall take effect October 1, 2025. Applications for covered events occurring on or after that date are governed by this ordinance, except that an event already finally permitted before adoption shall proceed under its existing authorization unless the organizer voluntarily submits a material change. The permitting director shall publish forms before the effective date and shall instruct reviewing personnel in the ordinance's definitions and neutrality requirements.

Adopted by the City Council of Norvale on August 18, 2025, following the votes recorded in the official minutes. Approved as to form by the Office of the City Attorney. Certified by the Municipal Clerk as a true enactment maintained in the City's legislative records. Form PS-1 and the accompanying fee worksheet were issued November 3, 2025, as the standardized administrative materials for this ordinance. The certification establishes the enactment and issuance dates; it does not resolve any dispute concerning constitutionality, application to a particular organizer, or the factual basis for a permit decision.